

26STCV07408 26STCV07408

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C08%2F28%2F2026

Source SHA-256: 223c0b34224500e29f7bda4b1c5fc5e1e45d5c496e4b755fe7dc4bef55fb13e5

Case Number: 26STCV07408 Hearing Date: August 28, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 17

TENTATIVE RULING

JAMES

SUNG WHAN

vs.

CHARLENE BEANCOURT BRITO

Case No.: 26STCV07408

Hearing

Date: August 28, 2026

Defendant's special motion to strike

Plaintiff's Complaint is GRANTED.

On

3/9/2026 , pro per Plaintiff James Sung Whan (Plaintiff) filed suit against

Defendant Charlene Betancourt Brito (Defendant), alleging: (1) slander; (2)

invasion of privacy; (3) intentional interference with contract and prospective advantage; (4) unfair business practices; (5) conspiracy; (6) negligent hiring; (7) fraud; (8) defamation; (9) indemnity; (10) declaratory relief; (11) malicious prosecution; and (12) abuse of process.

On

6/23/2026, Defendant specially moved to strike Plaintiff's Complaint.

On

7/23/2026, the Court granted Plaintiff's oral motion for a continuance, and indicated that it would permit additional supplemental briefing to be submitted pursuant to code. No additional briefing was filed. As such, the Court's original analysis remains unmodified.

Legal

Standard

On a

special motion to strike pursuant to Code of Civil Procedure (CCP) section 425.16, also known as an anti-SLAPP motion, moving parties have the initial burden to demonstrate that a cause of action is subject to a special motion to strike. (Martinez v. Metabolife Inter.

Ins. (2003) 113 Cal.App.4th 181, 186; Fox

Searchlight Pictures Inc. v. Paladino (2001) 89 Cal.App.4th 294, 304.)

First, the court must determine whether moving parties have made a prima facie showing that the attacked claims arise from a protected activity, including defendants' right of petition, or free speech, under a constitution, in connection with issues of public interest. (Healy v. Tuscany Hills Landscape & Recreation Corp., (2006) 137 Cal.App.4th 1, 5; Soukup v. Law Offices of Herbert Hafif (2006)

39 Cal.4th 260, 278; Code Civ. Proc., § 425.16, subd.

(e).) Moving parties can satisfy this burden by showing (1) statements made before legislative, executive or judicial proceedings, or made in connection with matters being considered in such proceedings, or (2) statements made in a public forum, or other conduct in furtherance of the exercise of the constitutional rights of petition or free speech, in connection with issues of public interest. (CCP § 425.16, subd. (e); Equilon Ent., LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 66.)

If the

court finds this showing has been made, it must dismiss the cause of action unless the plaintiff meets its burden to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd.

(b)(1); Balzaga v.

Fox News Network, LLC (2009) 173 Cal.App.4th 1325, 1336.)

This means that the plaintiff must state a legally sufficient claim and must then present evidence that substantiates or sustains the claim. (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61; see also Wilson v. Parker, Covert & Chidester (2002)

28 Cal.4th 811, 821 [plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited”].)

Discussion

Defendant

argues that Plaintiff’s claim implicates protected activity as it concerns Defendant’s filing of a workers compensation claim, administrative charge, and civil action, as well as pre-litigation and in-litigation communications made through counsel.

The

California Supreme Court has held that protected petitioning activity includes communicative conduct such as the filing, funding, and prosecution of a civil action. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1056.) This protection extends to administrative proceedings and quasi-judicial bodies. An administrative complaint to the California Civil Rights Department is an official proceeding authorized by law within section 425.16, subdivisions (e)(1) and (e)(2). (See Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115-1116.) The same is true of a workers’ compensation claim before the WCAB. (Cf. Rusheen, supra, 37 Cal.4th at p. 1057.)

Here,

Plaintiff’s claims concern “the filing of pleadings, the assertions of fact in those pleadings, and communications by counsel to the workers’ compensation insurer, its adjusters, Plaintiff and workers’ compensation defense counsel in connection with those pleadings.” (Motion, 10: 14-17.)

Accordingly,

the Court finds that Defendant has satisfied its burden to show that Plaintiff's claims implicate protected activity, and the burden shifts to Plaintiff to show a probability of prevailing on the merits. (CCP § 425.16, subd. (e).)

In opposition, Plaintiff argues that the claim does not implicate protected activity because it fundamentally arises out of Defendant intentionally provoking animals to orchestrate a staged workplace injury, rather than the subsequent litigation it led to.

However, even accepting this as true, where a complaint alleges both protected and unprotected activity within a single cause of action, the analysis proceeds act by act. In *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1010, the Supreme Court instructed that the Court must analyze each claim for relief, each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action, to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion. Quoting *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396, the *Bonni* Court further instructed that the moving defendant must identify the acts alleged in the complaint that it asserts are protected and what claims for relief are predicated on them, the court should examine whether those acts are protected and supply the basis for any claims, and it does not matter that other unprotected acts may also have been alleged within what has been labeled a single cause of action; these are disregarded at this stage. (*Bonni*, supra, 11 Cal.5th at p. 1010.) So long as a court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached with respect to those claims. (*Ibid.*)

Here, as laid out by Defendant, the fundamental acts Plaintiff identifies as wrongful is protected:

-

Act 1. Ms. Betancourt Brito's filing of WCAB Case No. ADJ20707738. (Compl., p. 3; ¶ 18(a))

-

Ms. Betancourt Brito's filing of CRD Case No. CMT00157. (Compl., ¶ 18(e).)

-

Ms. Betancourt Brito's filing of the
Underlying Action, LASC No. 26STCV01622. (Compl., p. 3; ¶ 18(g).)

-

The substantive allegations in Ms.
Betancourt Brito's CRD charge and civil complaint, including the disability
discrimination, retaliation, wrongful termination, defamation, and intentional
infliction of emotional distress causes of action. (Compl., ¶ 18(e)-(h).)

-

Ms. Betancourt Brito's counsel's
pre-litigation correspondence with Preferred Employers Insurance Company and
its claim adjusters on or about March 31, 2025 and other dates. (Compl., ¶
18(c), (d); Reyes Decl., ¶ 6.)

-

Ms. Betancourt Brito's pleading-stage
allegations in the Underlying Action characterizing as defamatory the reports
that Plaintiff himself made to the National Insurance Crime Bureau and to the
California Insurance Commissioner. (Compl., ¶ 18(d).) Ms. Betancourt Brito did
not make any such reports, and her counsel did not make any such reports; the
reports were made by Plaintiff and acknowledged by him in writing. (Reyes
Decl., ¶ 14.)

-

Ms. Betancourt Brito's communications
with coworkers and prospective witnesses concerning the workplace incident, her
termination, and her claims. (Compl., ¶ 18(d),

-

The acts of Ms. Betancourt Brito's
counsel in representing her before the WCAB, the CRD, and this Court, including
the filing of pleadings, petitions, motions, and supporting documents, and the
communications with the insurer and its adjusters. (Compl., generally.)

(Motion, 12: 17-14: 9.)

To the extent that the Complaint

incorporates an allegation of conduct outside this activity, those allegations merely provide context, without supporting an independent claim for recovery. (Baral, supra, 1 Cal.5th at p. 394.)

Plaintiff further argues that he can show a probability of prevailing because he submitted declarations from six individuals who he claims personally witnessed Defendant intentionally provoking the animals prior to the bite in order to file subsequent claims against Plaintiff.

However, this evidence does not resolve the fact that Plaintiff's Complaint arises out of protected communications, and the privilege applies to: (a) communications in workers' compensation proceedings (Rusheen, supra, 37 Cal.4th at p. 1057); (b) communications in administrative proceedings before agencies such as the CRD (Hagberg, supra, 32 Cal.4th at pp. 360-361); (c) pre-litigation communications in serious anticipation of litigation (Rubin, supra, 4 Cal.4th at p. 1194; Edwards v. Centex Real Estate Corp. (1997) 53 Cal.App.4th 15, 35-36); (d) communications with insurers regarding claim coverage and investigation (Rubin, supra, 4 Cal.4th at p. 1194); and (e) communications with prospective witnesses in preparation for litigation (Id. at pp. 1194-1195).

Every statement that Plaintiff identifies as actionable in his Complaint falls squarely within one or more of these categories. Because the litigation privilege is a substantive defense that bars all tort liability (other than malicious prosecution), it defeats Plaintiff's first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, and twelfth causes of action. (See Rubin, supra, 4 Cal.4th at pp. 1194-1195; Rusheen, supra, 37 Cal.4th at pp. 1057-1058.)

As for malicious prosecution, to establish this claim, a plaintiff must plead and prove three elements: (1) the underlying action was commenced by or at the direction of the defendant and pursued to a legal termination favorable to the present plaintiff; (2) it was brought without probable cause; and (3) it was initiated with malice. (Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 292; Jarrow Formulas, supra, 31 Cal.4th at p. 741.) The absence of a favorable termination is dispositive. (Jarrow Formulas, supra, 31 Cal.4th at p. 741.)

Here, Underlying Action remains pending in this Court. (Reyes Decl., ¶ 5.) The WCAB Claim remains pending and was taken off calendar only on an interim basis on or about 11/10/ 2025; it has not been finally adjudicated. (Reyes Decl., ¶ 3; Brito Decl., ¶ 10.) Because none of the underlying proceedings has terminated, nor have they been terminated favorably to Plaintiff, this claim fails as a matter of law.

Based on the foregoing, Defendant's special motion to strike Plaintiff's Complaint is granted. Defendant must separately move for attorney fees incurred as part of this motion, attaching applicable invoices, in order for the Court to assess their reasonableness and to insure only fees related to this motion were included.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.